

Chapter 1

GENERAL PROVISIONS

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[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

ARTICLE I

Adoption of Code**[Adopted 12-19-1985 by Ord. No. 566]****§ 1-1. Approval, adoption and enactment of Code.**

Pursuant to Section 1008(b) of the Borough Code [53 P.S. § 46008(b)], the codification of a complete body of ordinances for the Borough of Baldwin, County of Allegheny, Commonwealth of Pennsylvania, as revised, codified and consolidated into titles, chapters and sections by General Code Publishers Corp. and consisting of Chapters 1 through 173, is hereby approved, adopted, ordained and enacted as a single ordinance of the Borough of Baldwin, which shall be known and is hereby designated as the "Code of the Borough of Baldwin," hereinafter referred to as the "Code."

§ 1-2. Effect of Code on previous provisions.

The provisions of this Code, insofar as they are substantively the same as those of ordinances in force immediately prior to the enactment of this ordinance, are intended as a continuation of such ordinances and not as new enactments, and the effectiveness of such provisions shall date from the date of adoption of the prior ordinance. All such provisions are hereby continued in full force and effect and are hereby reaffirmed as to their adoption by the Borough Council of the Borough of Baldwin, and it is the intention of said Council that each such provision contained within the Code is hereby reenacted and reaffirmed as it appears in said Code. Only such provisions of former ordinances as are omitted from this Code shall be deemed repealed or abrogated by the provisions of § 1-3 below, and only new or changed provisions, as described in § 1-6 below, shall be deemed to be enacted from the effective date of this Code, as provided in § 1-15 below.

§ 1-3. Repeal of ordinances not contained in Code.

All ordinances or parts of ordinances of a general and permanent nature adopted by the Borough of Baldwin and in force on the date of the adoption of this Code and not contained in the Code are hereby repealed as of the effective date given in § 1-15 below, except as hereinafter provided.

§ 1-4. Ordinances saved from repeal; matters not affected by repeal.

The adoption of this Code and the repeal of ordinances provided for in § 1-3 of this ordinance shall not affect the following ordinances, rights and obligations, which are hereby expressly saved from repeal; provided, however, that the repeal of ordinances pursuant to § 1-3 or the saving from repeal of ordinances pursuant to this section shall not be construed so as to revive any ordinance previously repealed, superseded or no longer of any effect:

- A. Any ordinance adopted subsequent to September 17, 1984.
- B. Any right or liability established, accrued or incurred under any legislative provision of the Borough prior to the effective date of this ordinance, or any action or proceeding brought for the enforcement of such right or liability or any cause of action acquired or existing.
- C. Any offense or act committed or done before the effective date of this ordinance in violation of any legislative provision of the Borough or any penalty, punishment or forfeiture which may result therefrom.
- D. Any prosecution, indictment, action, suit or other proceeding pending, or any judgment rendered,

prior to the effective date of this ordinance, brought pursuant to any legislative provision of the Borough.

- E. Any franchise, license, right, easement or privilege heretofore granted or conferred by the Borough or any lawful contract, obligation or agreement.
- F. Any ordinance or resolution appropriating money or transferring funds, promising or guaranteeing the payment of money or authorizing the issuance and delivery of any bond of the Borough, or other instruments or evidence of the Borough's indebtedness.
- G. Any ordinance adopting an annual budget or establishing an annual tax rate.
- H. Any ordinance providing for the levy, imposition or collection of special taxes, assessments or charges.
- I. Any ordinance authorizing the purchase, sale, lease or transfer of property or acquiring property by acceptance of deed, condemnation or exercise of eminent domain.
- J. Any ordinance annexing land to the Borough.
- K. Any ordinance providing for or requiring the construction or reconstruction of sidewalks, curbs and gutters.
- L. Any ordinance, or part of an ordinance, providing for laying out, opening, altering, widening, relocating, straightening, establishing grade, changing name, improvement, acceptance or vacation of any right-of-way, easement, street, road, highway, sidewalk, park or other public place or property or designating various streets as public highways.
- M. Any ordinance establishing water, sewer or other special purpose districts and designating the boundaries thereof; or providing for a system of sewers or water supply lines; or providing for the construction, extension, dedication, acceptance or abandonment of any part of a system of sewers or water supply lines; or authorizing the execution and delivery of agreements of leases between the Municipal Authority and the Borough of Baldwin.
- N. Any ordinance providing for the making of public improvements.
- O. Any ordinance providing for the salaries and compensation of officers and employees of the Borough or setting the bond of any officer or employee.
- P. Any ordinance amending the zoning regulations or Zoning Map.

§ 1-5. Inclusion of new legislation prior to adoption of Code.

All ordinances of a general and permanent nature adopted subsequent to the date given in § 1-4A and/or prior to the date of adoption of this ordinance, are hereby deemed to be a part of the Code and shall, upon being printed, be included therein. Attested copies of all such legislation shall be temporarily placed in the Code until printed supplements are included.

§ 1-6. Changes and revisions in previously adopted ordinances; new provisions.

- A. Nonsubstantive grammatical changes. In compiling and preparing the ordinances of the Borough for adoption and revision as part of the Code, certain nonsubstantive grammatical and style changes were made in one or more of said ordinances. It is the intention of the Council that all such changes be adopted as part of the Code as if the ordinances so changed had been previously formally amended to

read as such.

- B. General deletions. Sections pertaining to severability, effective dates and repeals have been deleted since such provisions are included in this ordinance or are of no further effect.
- C. Substantive changes and revisions. In addition to the changes and revisions described above, the following changes and revisions of a substantive nature are hereby made to various ordinances included in the Code. These changes are made to bring provisions into conformity with the desired policies of the Council, and it is the intent of the Council that all such changes be adopted as part of the Code as if the ordinances so changed have been previously formally amended to read as such. All such changes and revisions shall be deemed to be in effect as of the effective date of the Code specified in § 1-15.¹

§ 1-7. Interpretation of provisions.

In interpreting and applying the provisions of the Code, they shall be held to be the minimum requirements for the promotion of the public health, safety, comfort, convenience and general welfare. Where the provisions of the Code impose greater restrictions or requirements than those of any statute, other ordinance or regulation, the provisions of the Code shall control. Where the provisions of any statute, other ordinance or regulation impose greater restrictions or requirements, the provisions of such statute, other ordinance or regulation shall control.

§ 1-8. Titles and headings; editor's notes.

- A. Chapter and article titles, headings and titles of sections and other divisions in the Code, or in supplements made to the Code, are inserted in the Code and may be inserted in supplements to the Code for the convenience of persons using the Code and are not part of the ordinances.
- B. Editor's notes indicating sources of sections, giving other information or referring to the statutes or to other parts of the Code are inserted in the Code and may be inserted in supplements to the Code for the convenience of persons using the Code and are not part of the ordinances.

§ 1-9. Filing of copies of Code.

Three copies of the Code in a post-bound volume shall be filed with the Ordinance Book in the office of the Borough Secretary and shall remain there for use and examination by the public. Upon adoption, such copies shall be certified to by the Borough Secretary, as provided by law, and such certified copies shall remain on file in the office of the Borough Secretary, available to persons desiring to examine the same during all times while said Code is in effect.

§ 1-10. Amendments to Code.

Any and all additions, deletions, amendments or supplements to the Code, when passed and adopted in such form as to indicate the intention of the Council to be a part thereof, shall be deemed to be incorporated into such Code so that reference to the Code shall be understood and intended to include such changes. Whenever such additions, deletions, amendments or supplements to the Code shall be adopted, they shall thereafter be printed and, as provided hereunder, inserted in the post-bound book containing said Code, as amendments and supplements thereto.

1. Editor's Note: A complete description of these changes is on file in the office of the Borough Secretary.

§ 1-11. Code books to be kept up-to-date.

It shall be the duty of the Borough Secretary, or someone authorized and directed by him or her, to keep up-to-date the certified copies of the book containing the Code required to be filed in the office of the Borough Secretary for the use of the public. All changes in said Code and all ordinances adopted by the Council subsequent to the effective date of this codification which the Council shall adopt specifically as part of the Code shall, when finally adopted, be included therein by reference until such changes or new ordinances are printed as supplements to said Code books, at which time such supplements shall be inserted therein.

§ 1-12. Publication of notices.

The Borough Secretary, pursuant to law, shall cause to be published in the manner required a notice of the introduction and of the adoption of the Code in a newspaper of general circulation in the Borough. The enactment and application of this ordinance, coupled with the publication of the notices of introduction and adoption, as required by law, and the availability of copies of the Code for inspection by the public, shall be deemed, held and considered to be due and legal publication of all provisions of the Code for all purposes.

§ 1-13. Altering or tampering with Code; penalties for violation.

It shall be unlawful for anyone to improperly change or amend, by additions or deletions, or to alter or tamper with the Code, or any part or portion thereof, in any manner whatsoever, which will cause the law of the Borough to be misrepresented thereby. Anyone violating this section of this ordinance shall, upon conviction thereof, be punished by a fine not exceeding \$300 plus costs of prosecution, collectible as provided by law, or by imprisonment for a term not exceeding 30 days; provided, however, that if the District Justice determines that the defendant is without financial means to pay the fines and costs immediately or in a single remittance, such defendant be permitted to pay the fines or costs in installments and over such periods of time as the District Justice deems to be just.

§ 1-14. Severability.

The provisions of this ordinance and of the Code adopted hereby are severable, and if any clause, sentence, subsection, section, article or part thereof shall be adjudged by any court of competent jurisdiction to be illegal, invalid or unconstitutional, such judgment or decision shall not affect, impair or invalidate the remainder thereof but shall be confined in its operation and application to the clause, sentence, subsection, section, article or part thereof rendered. It is hereby declared to be the intent of the Council that this ordinance and the Code would have been adopted if such illegal, invalid or unconstitutional clause, sentence, subsection, section, article or part thereof had not been included therein.

§ 1-15. Effective date.

All provisions of this ordinance and of the Code shall be in force and effect on and after December 19, 1985.

§ 1-16. Inclusion of ordinance in Code.

This ordinance shall be included in the Code as Chapter 1, General Provisions, Article I.

Chapter 4**AUDITOR, INDEPENDENT**

§ 4-1.	Abolition of elected office.	§ 4-2.	Appointment of independent auditor.
		§ 4-3.	Powers and duties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 12-20-1982 by Ord. No. 528. Amendments noted where applicable.]

§ 4-1. Abolition of elected office.

From and after December 31, 1982, the office of elected auditors in the Borough of Baldwin is hereby abolished. Any auditors presently holding office for the term for which elected shall not, from and after December 31, 1982, audit, settle or adjust any accounts audited by such elected auditors, but such elected auditors shall perform other duties of their office as specified in the Borough Code.

§ 4-2. Appointment of independent auditor.

The office of Auditor shall henceforth be held by an independent auditor, who shall be a certified public accountant, registered in Pennsylvania; a firm of certified public accountants so registered; or a competent public accountant or a competent firm of public accountants. The office of independent auditor shall be appointed annually by a resolution of the Borough Council, which resolution shall be adopted before the close of the fiscal year of the Borough and shall authorize the independent auditor to make an independent examination of the accounting records of the Borough for such fiscal year, and such independent auditor shall also perform whatever other duties and shall exercise such powers as are conferred upon the Auditor by the annual resolution of the Borough Council or by the powers and duties created in § 4-3 hereof.

§ 4-3. Powers and duties.

The general powers and duties of the independent auditors appointed under this chapter shall be as follows:

- A. The independent auditor shall annually examine, audit and settle all accounts whatsoever in which the Borough is concerned, and the audit shall consist of an examination in accordance with generally accepted auditing standards and shall include such tests of the accounting records and such other auditing procedures as it considers necessary in the circumstances.
- B. The independent auditor shall audit the accounting records of the Borough for the fiscal year and shall prepare a report on the examination, which shall set forth:
 - (1) The scope of its examination.
 - (2) Its opinion of the fairness of the presentation of the financial statement of the Borough which shall show a complete statement of the financial condition of the Borough, giving in detail the actual indebtedness, the amount of the funded debt, the amount of the floating debt thereof, the valuation of taxable property therein, the assets of the Borough with the character and value thereof and the date of maturity of the respective forms of funded debt thereof.

- (3) The amount of any balance or shortage or any expenditure of a kind or made in a manner prohibited or not authorized by a statute which came to its attention during the course of its examination and which, in its opinion, causes a financial loss to the Borough, which loss is material in relation to the receipts and disbursements of the Borough, and such amount shall be a surcharge against any officer against whom such balance or shortage shall appear.

C. It shall be the duty of the independent auditor:

- (1) To file a copy of the report with the Secretary of the Borough and the Clerk of the Court of Quarter Sessions of the County and the Department of Community Affairs² not less than 90 days after the close of the fiscal year.
- (2) To publish within 10 days thereafter, by advertisement in at least one newspaper of general circulation in the Borough, a concise financial statement setting forth the balance in the treasury at the beginning of the fiscal year, all revenues received during the fiscal year by major classifications, all expenditures made during the fiscal year by major functions, the current resources and liabilities of the Borough at the end of the fiscal year, the gross liability and net debt of the Borough, the amount of the assessed valuation of the Borough, the assets of the Borough with the character and value thereof, the date of the last maturity of the respective forms of funded debt and the assets in each sinking fund. The independent auditor shall make his report on the uniform form prepared pursuant to Article XIII of Title 53, 53 P.S. § 46301 et seq. Such publication shall be deemed compliance with the provisions of the Act of June 25, 1941, P.L. 159, known as the "Municipal Borrowing Law," 53 P.S. § 6101 et seq.,³ which requires the corporate authorities of the boroughs to publish an annual statement of indebtedness.

2. Editor's Note: Now the Department of Community and Economic Development.

3. Editor's Note: 53 P.S. § 6101 et seq. was repealed by the Act of July 12, 1972, P.L. 781, No. 185. For current provisions pertaining to municipal borrowing, see the Local Government Unit Debt Act, 53 Pa.C.S.A. § 8001 et seq.

Chapter 8**CABLE TELEVISION RATE REVIEW**

§ 8-1.	Adoption of SHACOG resolution.	§ 8-4.	Authorization of signatures.
§ 8-2.	Term of participation.	§ 8-5.	Authority of Committee and Review Board.
§ 8-3.	Repealer.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 7-18-1994 by Ord. No. 671.⁴ Amendments noted where applicable.]

GENERAL REFERENCES

Cable television franchise — See Ch. A174.

§ 8-1. Adoption of SHACOG resolution.

The Borough of Baldwin hereby adopts SHACOG Board Resolution No. 01-94⁵ and agrees to participate in the joint cable television rate review process.

§ 8-2. Term of participation.

SHACOG Board Resolution No. 01-94 shall be binding upon the Borough of Baldwin from year to year as provided in that resolution until such time as Borough Council withdraws pursuant to the procedures established in SHACOG Resolution No. 01-94.

§ 8-3. Repealer.

Ordinance No. 658, establishing the Franchising Authority of the Borough of Baldwin, is hereby repealed and the Authority is dissolved, and Resolution No. 94-3 establishing regulations for that Board to review cable television rates is hereby repealed.

§ 8-4. Authorization of signatures.

The appropriate municipal officers are authorized to sign the attached agreement⁶ between SHACOG and the Borough of Baldwin to participate in the SHACOG Joint Rate Review Program.

§ 8-5. Authority of Committee and Review Board.

The Rate Review Committee and the SHACOG Joint Rate Review Board created by SHACOG Board Resolution No. 01-94 is hereby authorized to act on behalf of the Borough of Baldwin within the confines

4. Editor's Note: This ordinance also repealed former Ch. 8, Cable Television Franchising Authority, adopted 5-17-1993 by Ord. No. 658.

5. Editor's Note: Said resolution is included at the end of this chapter.

6. Editor's Note: Said agreement is included at the end of this chapter.

of the authority set forth in SHACOG Resolution No. 01-94 for so long as the Borough of Baldwin participates in that process.

No. 01-94

SHACOG BOARD RESOLUTION

Authorizing a system by which member municipalities which are serviced by TCI of Pennsylvania as their cable television operator may jointly coordinate rate review procedures and decisions.

BE IT HEREBY RESOLVED that the Board of the South Hills Area Council of Governments (SHACOG) hereby establishes a joint municipal procedure for reviewing cable television rate requests from member municipalities serviced by TCI of Pennsylvania and sets forth the following procedures:

Section 1

- (a) Any SHACOG member municipality serviced by TCI of Pennsylvania as its cable television operator may enter into an agreement with SHACOG to jointly review and decide on cable television rates as permitted by the Cable Television Consumer Protection and Competition Act of 1992 (the "Cable Act"), and the Rate Regulation Standards of the Federal Communications Commission ("FCC") in Subpart (N) — Cable Rate Regulation, 47 CFR 76.900 et seq., as may be amended.
- (b) The signing of an agreement to participate in the Joint Rate Review Program will be binding on that member municipality for the duration of that calendar year. The agreement will automatically renew unless the Executive Director of SHACOG receives written notice of withdrawal at least 90 days before the end of the preceding calendar year.

Section 2

- (a) The SHACOG Rate Review Board Administrative Committee is hereby established (hereinafter referred to as the Rate Review Committee). The Committee shall consist of the Manager or Secretary or a designated substitute from each participating municipality. The SHACOG Executive Director shall be ex officio the Secretary for this Committee.
- (b) The Rate Review Committee shall meet and review rate information filed with the participating member municipalities within 10 days of notification that rate review information has been submitted to a member municipality. The representatives of those participating municipalities present shall decide what investigation, if any, will be undertaken to determine if the rate request is appropriate and lawful. A quorum of the Rate Review Committee will consist of a representative from 1/2 of the participating municipalities.
- (c) A majority vote of the members then present and voting shall be binding on all municipalities participating in the program. The Rate Review Committee may extend the time within which to decide on the extent of investigation, provided that the total time expended permits the hearing provided for in Section 3 to be conducted within the time parameters permitted by the FCC regulations.
- (d) If a majority of the Rate Review Committee members present determine that the thirty-day period is insufficient to review the filing, they may recommend that participating municipalities act to extend the period established for the review as permitted by the Cable Act and the FCC's regulations to prevent the proposed rates from becoming effective by operation of law.
- (e) The Rate Review Committee may waive the requirements of the public hearing provided for by Section 3 for promotional rate reductions.

- (f) In the event that there is a tie vote of the Rate Review Committee, the SHACOG Executive Director is hereby empowered to vote to break the tie.

Section 3

- (a) The SHACOG Joint Rate Review Board is hereby established with authority to determine whether a rate request received by any participating member municipality is appropriate and lawful. The SHACOG Executive Director shall be ex officio the Secretary of the Board.
- (b) The Review Board shall be composed of one representative and one alternate appointed by each participating member municipality, although each municipality will only have one vote in deciding whether the rate request is permissible. Each municipality will determine who its representatives will be on the Review Board, and said representatives need not be a presently elected official or a member of the municipality's professional staff. In the event that an even number of municipalities participate, then the Executive Director of SHACOG, or his designate, shall sit on the Review Board to vote in the event of a tie. A quorum of the Review Board will consist of a representative from 1/2 of the participating municipalities.
- (c) The Review Board will schedule and conduct a public hearing for the receipt of oral comments and will receive written comments from the public and the cable operator on the reasonableness of the rates. The Executive Director of SHACOG shall give public notice of the hearing and notice of the hearing to the participating municipalities and to the cable operator.
- (d) The public hearing for oral comments shall normally be held and the close of the period for written comments shall be scheduled within 30 days of receipt of the rate filing unless extended by the Rate Review Committee. If the Rate Review Committee extends the period for the review of a rate filing, the period for written comments and the public hearing may be scheduled by the Board later than the thirty-day period commencing upon receipt of the rate filing, provided that such a period and hearing shall be held at such time that the comments received will be available for the Board's consideration in making the evaluation. The close of the comment period and the hearing for the initial rate filing of a cable operator that is providing service upon the effective date of the participating member municipality's ability to review rates as permitted by the FCC shall not be scheduled more than 120 days from the effective date of the participating member's ability to review rates.
- (e) The Review Board shall review the rate filing and the comments received and make a determination as to the reasonableness of the rate filing. The Board shall present its evaluation within 30 days of receipt of the rate filing unless the time period is extended as provided in Section 2(c).

Section 4

- (a) The costs of providing this Joint Rate Review Program shall be assessed on the participating member municipalities only. Such assessment shall be a pro rata share based on the ratio that the number of basic cable television subscribers in each participating municipality bears to the total number of basic cable television subscribers in all participating municipalities.
- (b) The number of basic subscribers shall be determined in each municipality as of September 30 of the preceding calendar year, and said ratio shall be revised annually in this manner.

ADOPTED this 17th day of February, 1994

ATTEST:

Executive Director

President

**AGREEMENT BETWEEN SHACOG AND THE BOROUGH OF BALDWIN TO
PARTICIPATE IN THE SHACOG JOINT RATE REVIEW PROGRAM**

AND NOW, intending to be legally bound, the following agreement is entered into on this ____ day of ____, 1994, between the South Hills Area Council of Governments ("SHACOG") and the Borough of Baldwin:

1. It is the intent of the participating municipality to join the SHACOG Joint Rate Review program, and it is the intent of SHACOG to permit the participating municipality to participate fully in that program.
2. The participating municipality has read and reviewed SHACOG Board Resolution No. 01-94 which established the Joint Rate Review Program and any amendments to that resolution and agrees to be bound by that program.
3. The participating municipality agrees to pay its proportionate share of the costs as set forth in that resolution and to pay the annual assessment within 30 days of receipt. This agreement will continue to bind the two parties for each calendar year hereafter unless the participating municipality gives written notice to the Executive Director of SHACOG that it wishes to withdraw at least 90 days prior to the start of a calendar year.
4. SHACOG agrees to provide the participating municipality with an annual budget estimate prior to September 30 of the preceding calendar year, which assessment shall be based on the ratio which the number of basic cable television subscribers in the participating municipality bears to the total number of basic cable television subscribers of all of the participating communities. A member municipality shall not be required to pay more than that amount during the year unless SHACOG requests additional funds and the participating municipality agrees to pay same. If the participating municipality declines to pay the increased assessment, then that municipality's ability to participate in the joint program will end for that year as of the date of such refusal.
5. The assessment for calendar year 1994 shall be \$0.14 per basic cable subscriber in the participating municipality as of September 30, 1993.
6. The participating municipality understands that it must pass an appropriate resolution and/or ordinance to effectuate the cable review program, and SHACOG takes no responsibility for municipality's failure to properly do so.

BOROUGH OF BALDWIN

By _____

President of Council

ATTEST

Borough Secretary

EXAMINED AND APPROVED this ____ day of _____, 1994.

SHACOG

By _____

President

ATTEST:

Borough of Baldwin, PA

§ 8-5

CABLE TELEVISION RATE REVIEW

Executive Director

Chapter 9**CONTRACT BIDDING**

§ 9-1.	Establishment of prequalified bidders list.	§ 9-3.	Disqualification of bidders and removal from prequalified bidders list.
§ 9-2.	Prequalified bidders list application.	§ 9-4.	Appeal process.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 9-17-2024 by Ord. No. 933. Amendments noted where applicable.]

§ 9-1. Establishment of prequalified bidders list.

- A. The Borough Manager shall establish and maintain a prequalified bidders list (hereinafter referred to in this chapter as "list") for construction or infrastructure projects estimated to cost \$50,000 or more. Inclusion on the list shall signify that a bidder is considered a prequalified bidder, as defined below, and is eligible to bid on the projects described herein. Once qualified as a prequalified bidder, a bidder shall remain on the list indefinitely unless removed by reason of disqualification.
- B. A prequalified bidder is defined as a bidder who is considered responsible either through previous business dealings with the Borough or through an investigation of the bidder's credit worthiness, reliability, integrity, performance of other like or similar projects or sales, bonding history, trade, bank, surety and insurance references.

§ 9-2. Prequalified bidders list application.

- A. Any individual or entity wishing to be included on the list may apply by completing an application/questionnaire prepared by the Borough Engineer and the Borough Manager in consultation with the Borough Solicitor.
- B. All applications/questionnaires shall be reviewed, evaluated, and investigated by the Borough Manager, as set forth in § 9-1B, prior to the bidder's placement on the list. Upon completion of the review, the Borough Manager shall either place the bidder on the list or deny the bidder placement on the list, setting forth the reasons therefor.
- C. The Borough Manager shall periodically review the list, at the Borough's discretion, but no less than every five years, and a bidder shall resubmit its application/questionnaire in accordance with § 9-2A.

§ 9-3. Disqualification of bidders and removal from prequalified bidders list.

- A. The Borough reserves the right to disqualify any bidder from the list prior to or after the approval of their application under § 9-2. A disqualified or unqualified bidder may not bid on the projects described herein. The following is a nonexhaustive list of reasons a bidder may be disqualified:
 - (1) Unsatisfactory performance by the bidder or unsatisfactory products or services provided by the bidder to the Borough or to any other individual or entity;
 - (2) The bidder is in arrears to the Borough for any sum;

§ 9-3

CONTRACT BIDDING

- (3) False or misleading statements about a product or service;
 - (4) An attempt by the bidder to influence the purchase of products or services by the Borough through a gratuity, favor or benefit, or promise thereof, to a Borough officer or employee;
 - (5) Collusion with another bidder in an attempt to regulate the price, quality or availability of products or services to the detriment of the Borough; or
 - (6) The bidder fails to submit a bid to the Borough on two successive occasions.
- B. The Borough Manager shall provide prompt notice to any bidder disqualified as a prequalified bidder, setting forth the reasons thereof.
- C. If a bidder is disqualified by the Borough prior to the approval of its application under § 9-2, the bidder shall not be permitted on the list until requalified, as defined in § 9-3E.
- D. If a bidder is already included on the list and is subsequently disqualified by the Borough, the bidder shall be removed from the list until requalified, as defined in § 9-3E.
- E. A bidder may be requalified for the list upon reasonable proof that the cause for disqualification has been corrected and shall not reoccur.

§ 9-4. Appeal process.

Any bidder that has been disqualified from the list under § 9-3 may file an appeal with the Borough. The appeal shall be in writing and shall be considered by an Appeal Committee consisting of the Borough Manager, the Borough Engineer, and the Borough Municipal Services Manager. The appeal must comprehensively describe the reasons why the bidder believes disqualification was improper.

BALDWIN CODE

Chapter 11

FIRE COMPANIES

	ARTICLE I	§ 11-3.	Schedule of fees and costs.
	Collection of Costs	§ 11-4.	Collection of costs.
		§ 11-5.	Interest and administration fees.
§ 11-1.	Definitions.		
§ 11-2.	Authorization to recover costs and expenses.	§ 11-6.	Enforcement.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

ARTICLE I
Collection of Costs
[Adopted 4-16-2001 by Ord. No. 754]

§ 11-1. Definitions.

As used in this article, the following terms shall have the meanings indicated:

FIRE COMPANIES — Four volunteer fire companies of the Borough of Baldwin as follows: Baldwin Independent Fire Company No. 1, Becks Run Independent Fire Company, Option Independent Fire Company and South Baldwin Volunteer Fire Company.

PERSON — A natural person or persons, partnership, corporation, association, firm or other legal entity.

§ 11-2. Authorization to recover costs and expenses.

The Council of the Borough of Baldwin authorizes the fire companies to recover the costs of fire-fighting materials used and expended, the costs of the fire trucks, fire engines, rescue equipment and tankers, hazardous situation abatement materials involving any fire, safety and rescue and incident or operation, and hazardous abatement, including vehicular accidents and fires.

§ 11-3. Schedule of fees and costs.

Attached hereto, incorporated herein and made a part hereof as Exhibit A⁷ is a schedule of fees and costs which have been authorized by the Council of the Borough of Baldwin to be charged by the fire companies. These fees and costs may be charged and invoiced to any person or persons or insurance carrier for whom or for whose property such services were rendered and/or material provided.

§ 11-4. Collection of costs.

Said costs and fees as outlined above and in Exhibit A shall be recovered directly by the fire companies by direct billing of fire companies or shall be recovered by arrangements and contract with a third-party administrator (TPA). The utilization of the collection services of a TPA shall be for those situations or collection situations in which a TPA and the fire companies agree that services provided by a TPA, Inc., can be best utilized.

§ 11-5. Interest and administration fees.

In addition to the aforementioned fees and costs, the fire companies and a TPA, Inc., are authorized to collect reasonable interest and administration fees for collecting said fees and costs.

§ 11-6. Enforcement.

In the event that a person utilizing the services or materials of the fire companies fails to make payment for those fees and services directly to the fire companies or a TPA then, upon receipt of notice of the failure of payment, the Council of the Borough of Baldwin may elect to bring an action in a court of competent jurisdiction for the collection of any amounts due hereunder plus attorney's fees or for any other relief that may be appropriate.

7. Editor's Note: Schedule A is on file in the Borough offices.

HEALTH DEPARTMENT, COUNTY

Chapter 12

HEALTH DEPARTMENT, COUNTY

**§ 12-1. Intention to vest authority in
County.**

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 12-3-1956 by Ord. No. 117. Amendments noted where applicable.]

§ 12-1. Intention to vest authority in County.

It is hereby declared to be the intention of the Borough of Baldwin that, upon the establishment of the County Department of Health of Allegheny County, the Borough of Baldwin will cease to exercise any of the public health functions vested in it by law and become subject to the jurisdiction of the said County Department of Health.

BALDWIN CODE

Chapter 17

LIBRARY BOARD OF DIRECTORS

§ 17-1.	Creation; membership; appointment; terms.	§ 17-2.	Organization; officers.
		§ 17-3.	Powers, duties and responsibilities.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 8-31-1964 by Ord. No. 285. Amendments noted where applicable.]

§ 17-1. Creation; membership; appointment; terms.

There is hereby created a Board of Library Directors consisting of seven members who are residents of the Borough of Baldwin and who shall serve without compensation. The members of the said Board of Library Directors shall be appointed by the Borough Council, the first members to be appointed in the following manner: Two members are to be appointed for a term of one year; two members are to be appointed for a term of two years; and three members are to be appointed for a term of three years. All appointments to fill the places of those whose terms expire shall be for a term of three years. Vacancies shall be filled for the unexpired terms. All members shall serve until their successors have been appointed.

§ 17-2. Organization; officers.

The Board of Library Directors shall organize as soon as may be possible after appointment by electing a President, Secretary and Treasurer from its membership and such other officers and agents as the Board may deem necessary.

§ 17-3. Powers, duties and responsibilities.

The Board of Library Directors shall have all the powers, duties and responsibilities as are prescribed by the Act of June 14, 1961, P.L. 324, known as "The Library Code,"⁸ and shall have the further power to adopt such rules and regulations for its own organization and procedure as are necessary and are consistent with the ordinances of the Borough of Baldwin and the laws of the Commonwealth of Pennsylvania.

8. Editor's Note: See 24 P.S. § 4101 et seq.

MANAGER

Chapter 21

MANAGER

§ 21-1. Position created.

§ 21-2. Duties.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 12-19-2005 by Ord. No. 799. Amendments noted where applicable.]

GENERAL REFERENCES

Personnel policies — See Ch. 33.

§ 21-1. Position created.

The Borough Council hereby creates the position of Borough Manager.

§ 21-2. Duties.

The Borough Council may delegate those same duties to the position of Borough Manager that were formerly delegated and performed by the individual in the position of Borough Secretary and, in addition, may delegate any other nonlegislative and nonjudicial powers which the Borough Council is empowered to delegate.

BALDWIN CODE

Chapter 24

MUNICIPAL AUTHORITIES

	ARTICLE I	§ 24-5.	Name of Authority.
	Municipal Authority	§ 24-6.	Articles of Incorporation.
		§ 24-7.	Members of Authority.
§ 24-1.	Intention to organize authority.	§ 24-8.	Borough to effect incorporation of Authority.
§ 24-2.	Name.		
§ 24-3.	Articles of Incorporation.	§ 24-9.	Purposes, powers and rights.
		§ 24-10.	Severability.
	ARTICLE II	§ 24-11.	Repealer.
	Stormwater Authority		
§ 24-4.	Intent.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

ARTICLE I

Municipal Authority**[Adopted 4-1-1958 by Ord. No. 152]****§ 24-1. Intention to organize authority.**

It is the desire of the Borough Council of the Borough of Baldwin, Allegheny County, Pennsylvania, and the Borough Council hereby signifies its intention to organize an authority under the Municipality Authorities Act of May 2, 1945, P.L. 382, as amended.⁹

§ 24-2. Name.

The name of the proposed authority shall be "the Municipal Authority of the Borough of Baldwin, Allegheny County, Pennsylvania."¹⁰

§ 24-3. Articles of Incorporation.

The proposed Articles of Incorporation of the said Municipal Authority shall be executed by and on behalf of the Borough of Baldwin by the Mayor and the President of Council, and the Seal of said Borough shall be thereto affixed, attested by the Borough Secretary and filed with the Secretary of the Commonwealth. The Solicitor is hereby authorized and directed to cause to be published the notice of intention to file the Articles of Incorporation with the Secretary of the Commonwealth as required by the aforementioned Act.¹¹

9. The Municipality Authorities Act of 1945 (53 P.S. § 301 et seq.) was repealed by Act 22 of 2001 (June 19, 2001, P.L. 287, No. 22). See now the Municipality Authorities Act, 53 Pa.C.S.A. § 5601 et seq.

10. Editor's Note: Original Sections 3 and 4 of Ord. No. 152, which immediately followed this section and which contained the names of the members of the original Municipal Authority and the proposed Articles of Incorporation, were repealed 12-19-1985 by Ord. No. 566.

11. Editor's Note: The Articles of Incorporation are on file in the office of the Borough Secretary and are available for inspection during normal office hours. In addition, copies of the following ordinances pertaining to the Municipal Authority can be found in the Borough Secretary's office: Ord. No. 167, adopted 3-16-1959, authorizing the conveyance to the Authority of the existing sewer system; Ord. No. 168, providing for terms and conditions for the agreement of lease; Ord. No. 169, adopted 3-16-1959, providing for a management agreement with the Authority; Ord. No. 173, adopted 3-16-1959, authorizing the Authority to construct and repair sewer lines; and Ord. No. 274, adopted 3-23-1964, which provided for a lease surrender agreement for the sewer system. Ordinance No. 143, adopted 2-4-1958 and also on file in the office of the Borough Secretary, adopted an agreement with the Pleasant Hills Authority relating to the furnishing of sanitary sewage treatment service for certain areas of the Borough. Such service agreement was amended by supplemental agreements adopted 11-19-1962 by Ord. No. 237 and 3-15-1965 by Ord. No. 293. See also Ch. 134, Sewers.

ARTICLE II
Stormwater Authority
[Adopted 12-15-2020 by Ord. No. 913]

§ 24-4. Intent.

The Borough Council of the Borough hereby signifies its intention to organize a municipal authority under the provisions of the Municipal Authorities Act, 53 Pa.C.S.A. § 5601 et seq.

§ 24-5. Name of Authority.

The name of the Authority shall be the "Borough of Baldwin Stormwater Authority."

§ 24-6. Articles of Incorporation.

The Articles of Incorporation of the Borough of Baldwin Stormwater Authority are hereby approved and adopted in the following form.¹²

§ 24-7. Members of Authority.

The first members of the Board of the Borough of Baldwin Stormwater Authority, named in the aforesaid Articles of Incorporation, are hereby specifically appointed members of said Board for the term set after their respective names, commencing on the date of appointment and computed from the first Monday in January 2021.

§ 24-8. Borough to effect incorporation of Authority.

The President of the Borough Council of the Borough of Baldwin is hereby authorized and directed to execute said Articles of Incorporation of the Authority in substantially the form set forth herein, and the Borough Secretary is hereby authorized and directed to execute and deliver such other documents, agreements, certificates and instruments and to do all acts necessary or appropriate to effect the incorporation of the proposed Borough of Baldwin Stormwater Authority, including, but not limited to, to cause a notice of intention to file said Articles of Incorporation to be published as required by the Municipal Authorities Act, and to file said Articles of Incorporation, together with a certified copy of this article and required proofs of publication, with the Secretary of the Commonwealth of Pennsylvania.

§ 24-9. Purposes, powers and rights.

The Borough of Baldwin Stormwater Authority shall have the purposes, powers, and rights as provided in Section 5607 of the Municipal Authorities Act, 53 Pa.C.S.A. § 5607, including, but not limited to, purposes of financing working capital, acquiring, holding, constructing, financing, improving, maintaining and operating, owning or leasing, either in the capacity of lessor or lessee, projects within the defined boundary of the Authority of the following kind and character: stormwater planning, management and implementation. The Borough of Baldwin shall retain the right which exists under the Municipal Authorities Act to approve any plan of the Borough of Baldwin Stormwater Authority for the foregoing purpose.

12. Editor's Note: The Articles of Incorporation are on file in the Borough offices.

§ 24-10. Severability.

The provisions of this article are severable, and if any section, clause, sentence, part or provision thereof shall be held illegal, invalid and unconstitutional by any court of competent jurisdiction, such decision of the court shall not affect, impair, or invalidate any of the remaining sections, clauses, sentences, parts or provisions of this article.

§ 24-11. Repealer.

The provisions of any prior ordinance that are inconsistent with the provisions of this article are hereby repealed to the extent of such inconsistency.

PENSION FUNDS; RETIREMENT

Chapter 29

PENSION FUNDS; RETIREMENT

ARTICLE I		§ 29-19.	through § 29-31. (Reserved)
Police Pension Fund			
§ 29-1.	Restatement of plan; adoption by reference.		ARTICLE III Mandatory Police Retirement Age
§ 29-2.	through § 29-17. (Reserved)	§ 29-32.	Mandatory retirement age established.
ARTICLE II		§ 29-33.	Construal of provisions.
Service Employees Pension Plan		§ 29-34.	Applicability.
§ 29-18.	Restatement of plan; adoption by reference.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

GENERAL REFERENCES

Personnel policies — See Ch. 33.

Salaries and compensation — See Ch. 49.

Police Department — See Ch. 41.

Social security — See Ch. 52.

ARTICLE I

Police Pension Fund

[Adopted 1-21-2002 by Ord. No. 765¹³; amended in its entirety 7-22-2008 by Ord. No. 812]

§ 29-1. Restatement of plan; adoption by reference.

The plan, now known as "Borough of Baldwin Police Pension Plan," is hereby amended and restated in its entirety and is effective for participants who terminate employment on or after January 1, 2008, as provided in this plan document, and to that extent this document supersedes and repeals all prior plan documents. The benefits of any former participant who terminated employment prior to January 1, 2008, shall be determined by the applicable pension documentation in place prior to this plan document.¹⁴

§ 29-2. through § 29-17. (Reserved)

13. Editor's Note: This ordinance superseded former Art. I, Police Pension Fund, adopted 4-21-1958 by Ord. No. 153, as amended.

14. Editor's Note: A copy of the current Police Pension Plan document is on file in the office of the Borough Secretary.

ARTICLE II

Service Employees Pension Plan
[Adopted 1-27-2009 by Ord. No. 817¹⁵]**§ 29-18. Restatement of plan; adoption by reference. [Amended 10-18-2011 by Ord. No. 840]**

The plan now known as the "Service Employees Pension Plan of the Borough of Baldwin," attached hereto as Exhibit A, is hereby amended and restated in its entirety effective for participants who terminate employment on or after January 1, 2011, as provided in this plan document, and to that extent this document supersedes and repeals all prior plan documents.¹⁶ The benefits of any former participant who terminated employment prior to January 1, 2011, shall be determined by the applicable pension documentation in place prior to this plan document.

§ 29-19. through § 29-31. (Reserved)

15. Editor's Note: This ordinance superseded former Art. II, Nonuniformed Employees Pension Fund, adopted 1-21-2002 by Ord. No. 766.

16. Editor's Note: A copy of the current Service Employees Pension Plan document is on file in the office of the Borough Secretary.

ARTICLE III

Mandatory Police Retirement Age
[Adopted 2-21-1972 by Ord. No. 416]**§ 29-32. Mandatory retirement age established. [Amended 2-19-1973 by Ord. No. 433]**

Any police officer of the Borough of Baldwin having attained the age of 65 shall, on the anniversary date of his employment with the Borough which anniversary shall occur subsequent to said policeman's 65th birthday, be retired from active duty with the Borough of Baldwin and shall be ineligible to serve thereafter as a police officer on active duty with the Borough of Baldwin Police Department.

§ 29-33. Construal of provisions.

Nothing contained herein shall be construed so as to interfere, contradict, change or amend any other ordinance regarding police pension funds and minimum periods of total service therein and all minimum ages at which members of the force may be retired from active duty; provided, however, that the retirement age designated herein shall be mandatory.

§ 29-34. Applicability. [Amended 2-19-1973 by Ord. No. 433]

This article shall become effective immediately; providing, however, that any police officers presently employed with the Borough Police Department who may have attained that age of 65 years or older prior to the adoption of this article shall be covered by the provisions of this article and may serve until the anniversary date of their employment.¹⁷

17. Editor's Note: Former Art. IV, Supplementary Police Pension Fund Provisions, adopted 5-17-1993 by Ord. No. 656, as amended, which immediately followed this section, was repealed 1-21-2002 by Ord. No. 765. See Art. I of this chapter.

Chapter 33**PERSONNEL POLICIES**

§ 33-1.	Discrimination; tenure; political contributions.	§ 33-6.	Holidays.
§ 33-2.	Sick leave, emergency leave and annual leave.	§ 33-7.	Compensation for jury duty.
§ 33-3.	Overtime; compensatory time off.	§ 33-8.	Leaves of absence.
§ 33-4.	Sick leave.	§ 33-9.	Resignations; unauthorized absences.
§ 33-5.	Annual leave.	§ 33-10.	Benefits for disabled police officers.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 8-26-1963 by Ord. No. 259. Amendments noted where applicable.]

GENERAL REFERENCES

Pension funds; retirement — See Ch. 29.

Social security — See Ch. 52.

Salaries and compensation — See Ch. 49.

§ 33-1. Discrimination; tenure; political contributions.

- A. No employee shall be discriminated against because of race, religious belief, or political opinion or affiliations.
- B. The tenure of all employees shall be based upon continued satisfactory service, proper personal conduct and continued fitness for their positions.
- C. No employee shall be required to contribute to any political fund, be required to contribute financially to a campaign for an elective municipal office or be required to take part in any such campaign.

§ 33-2. Sick leave, emergency leave and annual leave.

- A. No employee shall be entitled to sick leave, emergency leave or annual leave until said employee shall have completed at least 12 months full-time or regularly scheduled part-time employment; however, all other benefits shall accrue as of the date any such employee enters the service of the Borough.
- B. Any regularly scheduled part-time employee, except school guard, may be entitled, at the discretion of Council, to annual leave without diminution in compensation, sick leave and emergency leave. The period of time of such annual leave, sick leave and emergency leave shall be determined by Council and shall be computed on the basis of one working day or portion thereof annual leave, sick leave or emergency leave for a designated number of hours or days or major portions thereof actually worked by said employee for the Borough during the prior twelve-month period. No such regularly scheduled part-time employee shall be permitted to accumulate annual leave for the purpose of receiving extra

or overtime compensation. The schedule of holidays and holiday pay rates provided for herein shall apply to any regularly scheduled part-time or casual employees.

- C. Time lost by any employee by reason of leave without pay or time otherwise not worked or paid for will not be counted in computing sick leave or annual leave to which such employee is entitled.

§ 33-3. Overtime; compensatory time off.

- A. Work in excess of established schedules shall be permitted only when necessary to meet operating requirements and only when authorized in advance of the performance of such work by a designated officer. Overtime work so authorized for salaried employees shall be compensated for by allowing said employee a like amount of time off within 90 days after the end of the month in which such authorized overtime work was performed; provided, however, that such time off must first be approved by a designated officer, provided further that, if Council determines that the granting of such time off after performance of authorized overtime work would be disruptive of the orderly operation and administration of the Borough, Council may, at its discretion, authorize, in lieu of like compensatory time off, payment for such authorized overtime work by salaried employees in excess of established schedules.
- B. Employees who are compensated at an hourly wage rate shall receive compensation for similarly authorized overtime work at the rate of time and 1/2 for every hour worked in excess of 40 hours in any working week.

§ 33-4. Sick leave.

- A. Sick leave with full pay shall be granted at the rate of 10 working days per year. Sick leave may be granted only for personal illness and may be accumulated for a period of three years. Earned sick leave shall be considered as working time in computing the annual leave to which the employee may be entitled.
- B. Sick leave in excess of three consecutive days shall be granted an employee only upon presentation to the Secretary of a signed certification from the attending physician or practitioner. The Secretary must be contacted on the first day of absence in order for the employee to claim sick leave benefits. False claims for sick leave or emergency leave benefits will be considered cause of disciplinary action, including suspension, demotion or dismissal.
- C. Emergency leave of not more than three days for death or serious illness of the spouse, parent, child, brother or sister of any full-time or regularly scheduled part-time employee may be granted without diminution in compensation; provided, however, that approval of the Secretary shall be secured in advance.

§ 33-5. Annual leave.

Annual leave without diminution in compensation shall be granted to all eligible full-time employees in accordance with the following schedule: five working days per year after 12 consecutive months of full-time employment with the Borough; 10 working days per year after 36 consecutive months of full-time employment with the Borough; and 15 working days per year after 60 consecutive months of full-time employment with the Borough; provided, however, that all eligible full-time employees who, at the effective date of this chapter have worked at least 12 but less than 36 consecutive months for the Borough shall be entitled to annual leave, without diminution of compensation, of 10 working days per year. No employee shall be permitted to accumulate annual leave time for more than one year or to waive annual

leave for the purpose of receiving overtime compensation.

§ 33-6. Holidays. [Amended 9-27-1965 by Ord. No. 305]

- A. All employees shall be entitled to the following seven legal holidays at full pay: New Year's Day, Memorial Day, Independence Day, Labor Day, Veterans Day, Thanksgiving Day and Christmas Day. When one of the aforesaid holidays falls on a Sunday, the following Monday shall be observed as a holiday. All employees shall be entitled to a one-half-day holiday on Good Friday at full pay; provided, however, that no employee shall be entitled to be compensated for any of the aforesaid holidays upon which an employee does not actually work if such employee fails to work on the working day before and the working day after said designated holiday.
- B. Any holiday work by a salaried employee shall be compensated for by allowing such employee time off within 90 days of the time earned at the rate of 1 1/2 hours for each hour or major fraction thereof, provided that such compensatory time off may be taken only with the prior approval of the Secretary. Holiday work by hourly rate employees shall be compensated at double the regular time.

§ 33-7. Compensation for jury duty.

Any employee called for jury duty shall be compensated in an amount equal to the difference between the employee's regular compensation and his compensation as a juror.

§ 33-8. Leaves of absence.

- A. Where the good of the service is involved, a leave of absence granted by Council to any employee to attend a recognized official meeting shall be considered as time on duty.
- B. Any employees called into the active service of any branch of the armed forces of the United States shall be granted leave of absence for the period of such service without loss of status, provided that the employee applies for reinstatement to the Secretary within 90 days after honorable discharge.
- C. Any employee may be granted a leave of absence without pay for a period not to exceed 60 days in any one calendar year for sickness, disability or other good and sufficient reasons which are considered by the Council to be in the best interests of the Borough.

§ 33-9. Resignations; unauthorized absences.

Any employee wishing to leave the service of the Borough in good standing shall file with the Secretary, at least 14 days before leaving, a written resignation stating the effective date of resignation and the reasons for leaving. Failure to comply with the provisions of this section may be considered cause for denying such employee future employment and for denying him such benefits as have been made available. Unauthorized absence from work for a period of three days may be considered as a resignation disclaiming benefits.

§ 33-10. Benefits for disabled police officers.

- A. From and after the effective date of this section, the Council of the Borough of Baldwin shall constitute and be the forum for the hearing and determination of Heart and Lung Act benefits under the provisions of the Heart and Lung Act, the Act of May 31, 1974, P.L. 309, No. 99, as amended, 53 P.S. § 637, and all claims authorized under the provisions of the Act shall be administered and determined by the Council of the Borough of Baldwin, except that, in the event that a determination shall be made by the Council of the Borough of Baldwin that a police officer should be terminated or

dismissed because of his inability to perform his duties in accordance with the civil service provisions of the Borough Code,¹⁸ and such officer has appealed the termination to the Civil Service Commission and such officer has made claims under the Heart and Lung Act because of his disability, then the Civil Service Commission of the Borough shall be authorized and empowered to hear such Heart and Lung Act claim, but only in that case. Nothing contained herein shall be construed so as to authorize or impose any responsibility for the determination or administration of workers' compensation claims upon the Council.

- B. For the purposes of the administration of this section, a quorum of the Council of the Borough of Baldwin shall be considered a sufficient forum for the determination of whether or not benefits should be payable under the Heart and Lung Act, and the vote of the majority of the quorum present shall be sufficient to render a decision. A stenographic record of the proceedings shall be kept at the expense of the Borough, which record is to be sealed and shall not be released to any member of the public or to any persons other than the Councilpersons of the Borough of Baldwin, the Secretary of the Borough, the Solicitor of the Borough, or such persons acting in the capacities of Borough Secretary or Solicitor, unless the police officer shall, in writing, authorize the release of such transcript to any other persons; provided further, however, that nothing contained herein shall restrict the right of the Borough to use such records in any court proceedings and appeals, or to provide them to the workers' compensation carrier responsible for the payment of workers' compensation benefits to employees of the Borough.
- C. The hearing regarding any claim by a police officer under the Heart and Lung Act shall be in accordance with the provisions of the Local Agency Law, the Act of April 28, 1978, P.L. 202, No. 53, as amended,¹⁹ and all provisions stated therein shall be observed, unless the same shall be in direct conflict with the provisions of this section insofar as the same relates to the confidentiality of the stenographic record. Following the hearing, the Council shall make its decision in writing, which shall briefly describe its reasons for the adjudication, its findings of fact and conclusions of law. The decision shall be rendered no later than 90 days from the date of the hearing and shall be forwarded by first-class mail to the police officer making any such claims. Prior to any such hearing, and upon the presentation of a claim or demand by a police officer, such police officer shall submit in writing a concise statement of all facts or circumstances which the police officer deems to be relevant to his or her claim, and shall submit any medical documentation of any physicians attending such police officer which shall detail the nature of the injury and whether or not the same is causally connected to the claimed disability of the police officer, and shall specifically indicate that the disability is job related or was incurred while on duty. To the extent that the disabilities of any police officers have been the basis of a claim for workers' compensation benefits, the standards of proof requiring causal connection between the employment and the injury which have been developed through workers' compensation cases shall apply to the Heart and Lung Act cases where the issue of whether disability is work related is involved. The Borough may seek further evidence of the claimant's disability and may require the claimant to appear before a physician of the Borough's choice for examination. The failure or refusal of the police officer or claimant to submit such documentation or yield to such examinations in a timely manner shall be the basis for dismissal of all such claims. Witnesses may be subpoenaed pursuant to the subpoena power contained in the Borough Code.
- D. This section shall take effect immediately; further, any cases decided prior to the enactment of this section and pursuant to and in reliance upon the determination of the Commonwealth Court of Pennsylvania in the case of *Sidlow v. Township of Nether Providence*, 621 A.2d 1105 (1993), shall

18. Editor's Note: See 53 P.S. § 45101 et seq.

19. Editor's Note: See 2 Pa.C.S.A. § 105.

be conducted in accordance with the provisions of this section pending its adoption by the Borough Council.

- E. Any provisions of this section which shall be declared unconstitutional shall not affect the validity of the remaining provisions of the section, and the remaining provisions shall continue in full force and effect unless amended or repealed by the Council of the Borough of Baldwin.

PLANNING COMMISSIONS

Chapter 38

PLANNING COMMISSIONS

ARTICLE I Borough Planning Commission		§ 38-6.	Appropriation for expenses.
		ARTICLE II South Hills Regional Planning Commission	
§ 38-1.	Creation.		
§ 38-2.	Membership; terms.		
§ 38-3.	Filling of vacancies; removal from office.	§ 38-7.	Association with Commission.
		§ 38-8.	Operating costs.
§ 38-4.	Compensation; reports; making of maps and recommendations.	§ 38-9.	Execution of Articles of Agreement; filing with Commission.
§ 38-5.	Submission and approval of plans and plots required.		

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

GENERAL REFERENCES

Subdivision and land development — See Ch. 142.

Zoning — See Ch. 168.

ARTICLE I

Borough Planning Commission
[Adopted 11-20-1952 by Ord. No. 16]**§ 38-1. Creation. [Amended 3-16-1970 by Ord. No. 383]**

There is hereby created and established under the authority of the Pennsylvania Municipalities Planning Code, Act No. 247 of 1968,²⁰ a Planning Commission.

§ 38-2. Membership; terms. [Amended 3-16-1970 by Ord. No. 383; 3-15-1982 by Ord. No. 523; 12-20-1994 by Ord. No. 665; 9-20-2004 by Ord. No. 789]

Said Planning Commission shall consist of five regular members serving alternative four-year terms and one alternate member to serve a four-year term, who must be residents of the Borough of Baldwin. The Planning Commission shall have the duties prescribed by the Pennsylvania Municipalities Planning Code.

§ 38-3. Filling of vacancies; removal from office. [Amended 3-16-1970 by Ord. No. 383]

Vacancies occurring in the office of a member of the Planning Commission, other than by expiration of a term, shall be filled by appointment of the Borough Council for the unexpired portion of the term vacated. Any member of a planning commission once qualified and appointed may be removed from office for malfeasance, misfeasance or nonfeasance in office or for any other just cause by a majority vote of the Borough Council, said vote to be taken after the member has received 15 days' advance notice of the intent to take such a vote. A hearing shall be held in connection with the vote if the member shall request it in writing.

§ 38-4. Compensation; reports; making of maps and recommendations.

The members of the Planning Commission shall serve without compensation and shall make annual report to Council of their transactions. The Borough Planning Commission may make or cause to be made and lay before Council and, at its discretion, cause to be published maps of the Borough or any portion thereof, including territory extending three miles beyond the Borough limits, showing the streets and highways, and other natural and artificial features, and also locations proposed by it for any new public buildings, civic centers, streets, parkways, parks, playgrounds or any other public ground or public improvement or any widening, extension or relocation of the same or any change in the Borough plan by it deemed advisable; and it may make recommendations to Council from time to time concerning any such matters and things aforesaid for action by Council thereon, and in so doing have regard for the present conditions and future needs and growth of the Borough, and the distribution and relative location of all the principal and other streets and railways, waterways and all other means of public travel and business communications, as well as the distribution and relative location of all public buildings, public grounds and open spaces devoted to public use; it may make recommendations to any public authorities or any corporations or individuals in said Borough with reference to the location of any buildings, structures or works to be erected or constructed by them.

§ 38-5. Submission and approval of plans and plots required.

All plans, plots or replots of lands laid out in building lots and the streets or other portions of the same intended to be dedicated to public use or for the use of purchasers or owners of lots fronting thereon or

20. Editor's Note: See 53 P.S. § 10101 et seq.

adjacent thereto, and located within the Borough limits, shall be first submitted to the Borough Planning Commission and approved by it before said plans shall be recorded; it shall be unlawful to receive or record any plan in any public office unless the same shall bear thereon, by endorsement or otherwise, the approval of the Borough Planning Commission and of the Borough Council. The disapproval of any such plan by the Borough Planning Commission shall be deemed a refusal of the proposed dedication shown thereon. The approval of the Planning Commission shall be deemed an acceptance of the proposed dedication, but it shall not impose any duty upon the Borough concerning the maintenance or improvement of any such dedicated parts until the Borough Council shall have made actual appropriations of the same by entry, use or improvement.

§ 38-6. Appropriation for expenses.

The Borough Council shall appropriate annually such sums as it deems necessary for defraying the expenses of the Planning Commission, and in no event shall the expenses of the Planning Commission, including the salaries of the Engineer or other employees, exceed the amount of the appropriation.

ARTICLE II

**South Hills Regional Planning Commission
[Adopted 11-18-1963 by Ord. No. 265]****§ 38-7. Association with Commission.**

The Borough of Baldwin hereby joins and associates in the creation of the South Hills Regional Planning Commission in conformity with the state statutes, as now or hereafter amended, and shall be bound thereby and in consideration of the mutual covenants and obligations contained within the Articles of Agreement, a copy of which is attached hereto and made a part hereof.²¹

§ 38-8. Operating costs.

The Borough of Baldwin hereby appropriates public funds for the operation of the South Hills Regional Planning Commission in the amount of \$25 for the year 1963 and for such subsequent years as the governing body shall approve of, which is determined to be the cost of operating the Regional Planning Commission and accomplishing the planning objectives of the participating municipalities.²²

§ 38-9. Execution of Articles of Agreement; filing with Commission.

The Borough of Baldwin hereby authorizes proper Borough officials of the Borough of Baldwin to execute the Articles of Agreement, and directs the Secretary to duly attest the signature, place the corporate seal thereon and forward a certified copy of this article to the Acting Secretary of the South Hills Regional Planning Commission.

21. Editor's Note: A complete copy of the Articles of Agreement is on file in the Borough offices.

22. Editor's Note: Original Section 3 of Ord. No. 265, which immediately followed this section and which provided for specific appointments to the Commission, was deleted 12-19-1985 by Ord. No. 566.

BALDWIN CODE

Chapter 41

POLICE DEPARTMENT

§ 41-1.	Confirmation and reestablishment; Chief of Police.	§ 41-2.	Divisions and classifications.
		§ 41-3.	Authority to appoint special policemen.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 9-6-1960 by Ord. No. 214. Amendments noted where applicable.]

GENERAL REFERENCES

Pension funds; retirement — See Ch. 29.

§ 41-1. Confirmation and reestablishment; Chief of Police.

A Police Department is hereby confirmed and reestablished in and for the Borough of Baldwin. The Chief of Police shall be the chief executive of the Police Department. He shall, under the direction of the Mayor, be in charge of the police force and have supervision over its members in the exercise of their powers, duties and responsibilities.

§ 41-2. Divisions and classifications. [Amended 4-29-1968 by Ord. No. 362; 2-19-1973 by Ord. No. 432; 8-20-1973 by Ord. No. 438; 6-18-2019 by Ord. No. 896]

There is hereby established in the Department of Police of the Borough of Baldwin the following divisions: the General Police Division; the Juvenile Division; the Narcotics Division; and the Traffic Division. The aforesaid divisions shall be subordinate to the Chief of Police. The classifications established by the Borough Council of the Borough of Baldwin, as amended by this section, shall be Deputy Chief of Police, Sergeant, Patrolman and Juvenile Officer. The number of persons to serve in each of said subordinate classifications and the compensation of each shall be determined by the Borough Council of the Borough of Baldwin from time to time.

§ 41-3. Authority to appoint special policemen.

Nothing contained herein shall affect the right of the Mayor to appoint special policemen during an emergency in which the safety and welfare of the Borough and the public is endangered.

(RESERVED)

Chapter 45

(RESERVED)

[Former Ch. 45, Recreation Board, adopted 10-17-1966 by Ord. No. 335, as amended, was repealed 4-18-1988 by Ord. No. 597. This ordinance also provided that the Borough Council be vested with all powers previously delegated to the Recreation Board.]

BALDWIN CODE

Chapter 49

SALARIES AND COMPENSATION

ARTICLE I
Salary of Mayor, Council and Treasurer

§ 49-3. Treasurer.

§ 49-1. Mayor.

§ 49-2. Members of Council.

ARTICLE II
Salaries of Other Officers and Employees

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin as indicated in article histories. Amendments noted where applicable.]

GENERAL REFERENCES

Pension funds; retirement — See Ch. 29.

Personnel policies — See Ch. 33.

ARTICLE I

Salary of Mayor, Council and Treasurer

[Adopted 1-7-1974 by Ord. No. 446; amended in its entirety 12-20-1999 by Ord. No. 736]

§ 49-1. Mayor.

From and after January 1, 2000, the salary of the Mayor of the Borough of Baldwin shall be \$475 per month.

§ 49-2. Members of Council.

From and after January 1, 2000, the salary of a member of Borough Council of the Borough of Baldwin shall be \$343.75 per month.

§ 49-3. Treasurer.

From and after January 1, 2000, the salary of the Borough Treasurer of the Borough of Baldwin shall be \$150 per month.

SALARIES AND COMPENSATION

§ 49-3

ARTICLE II

Salaries of Other Officers and Employees

[A complete list of the salaries of all officers and employees of the Borough of Baldwin is on file in the office of the Borough Secretary and is available for inspection during normal office hours.]

Chapter 52**SOCIAL SECURITY**

§ 52-1.	Extension of benefits to officers and employees.	§ 52-4.	Appropriation of necessary funds.
§ 52-2.	Authorization to execute agreement.	§ 52-5.	Compliance with provisions.
§ 52-3.	Authorization to make payments and deductions.	§ 52-6.	Commencement of active participation.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 10-16-1952 by Ord. No. 14. Amendments noted where applicable.]

GENERAL REFERENCES

Pension funds; retirement — See Ch. 29.

Salaries and compensation — See Ch. 49.

Personnel policies — See Ch. 33.

§ 52-1. Extension of benefits to officers and employees.

The Borough of Baldwin shall become a participant in the social security system and the benefits of old-age and survivors' insurance shall be extended to its employees and officers.

§ 52-2. Authorization to execute agreement.

The President of Council, the Borough Secretary and the Mayor of the Borough of Baldwin, in the Commonwealth of Pennsylvania, Allegheny County, are authorized to execute and deliver to the Secretary of Labor and Industry of the Commonwealth of Pennsylvania, the state agency charged with the administration of the enabling act, the plan and agreement required under the provisions of Section 6 of said enabling act²³ and the Social Security Act, to extend coverage to the employees and officers of this Borough and to do all other things necessary to that end.

§ 52-3. Authorization to make payments and deductions.

The Borough Secretary and the Borough Treasurer be and they are hereby authorized and directed to make all required payments into the contribution fund established by Section 7 of said enabling act,²⁴ and they are further authorized and directed to establish such a system of payroll deductions from salaries of officers and employees as may be necessary to their coverage under said old age and survivors insurance system.

§ 52-4. Appropriation of necessary funds.

Appropriation is hereby made from the proper fund or funds of the Borough of Baldwin, Allegheny

23. Editor's Note: See 65 P.S. § 206.

24. Editor's Note: See 65 P.S. § 207.

§ 52-4

SOCIAL SECURITY

County, Pennsylvania, in the necessary amount to pay into the contribution fund as provided in Section 4 of the enabling act,²⁵ and in accordance with the plan or plans and agreement.

§ 52-5. Compliance with provisions.

The proper officials of the Borough of Baldwin do all things necessary in accordance with the provisions contained in the plan and agreement necessary to the continued implementation of said old-age and survivors' insurance system.

§ 52-6. Commencement of active participation.

The Borough of Baldwin, Allegheny County, Pennsylvania, shall become a participant in the social security system, and such participation shall commence as of January 1, 1952.

25. Editor's Note: See 65 P.S. § 207.

Chapter 57**VACANCY BOARD**

§ 57-1.	Creation; membership.	§ 57-2.	Action by Board.
		§ 57-3.	Failure of Board to fill vacancy.

[HISTORY: Adopted by the Borough Council of the Borough of Baldwin 3-2-1981 by Ord. No. 512. Amendments noted where applicable.]

§ 57-1. Creation; membership. [Amended 1-17-1983 by Ord. No. 531]

There is hereby created in the Borough of Baldwin a Vacancy Board, which Board shall consist of the Borough Council, exclusive of the Mayor, and one registered elector of the Borough who shall be appointed by the Borough Council at the Council's first meeting each calendar year or as soon thereafter as practical, and who shall act as Chairman of the Vacancy Board. Such registered elector appointed to the Board shall remain in office until the first meeting of the Council each calendar year or until his successor shall be duly appointed and qualified.

§ 57-2. Action by Board.

If any vacancy occurs in the office of Mayor, Council, Auditor, Controller, if elected, or Tax Collector by reason of death, resignation or removal from the Borough or, in the event that a vacancy occurs by reason of the failure of the person elected to take the required oath or to give bond as provided by law or ordinance or for any other reason whatsoever, and if the Council of the Borough of Baldwin refuses, fails or neglects or is unable, for any reason whatsoever, to fill any such vacancy within 30 days after the vacancy occurs, then such vacancy shall be filled within 15 additional days by the Vacancy Board created herein. Any person appointed by such Vacancy Board to fill any such vacancy shall hold such office to which such person is appointed, if the term thereof continues so long, until the first Monday in January after the first municipal election occurring more than 60 days after the vacancy occurs, at which election an eligible person shall be elected to the office for the remainder of the term.

§ 57-3. Failure of Board to fill vacancy.

If any such vacancy occurs in the offices referred to herein, and if such vacancy is not filled by the Vacancy Board within 15 days, then it shall be the duty of the Chairman of the Vacancy Board to petition the Court of Common Pleas of Allegheny County to fill the vacancy by the appointment of a registered elector of the Borough to hold such office, if the term continues so long, until the first Monday in January after the first municipal election occurring more than 60 days after the vacancy occurs, at which election an eligible person shall be elected to the office for the remainder of the term.